

SOFTWARE DEVELOPMENT SERVICES AGREEMENT

1 DEFINITIONS

For the purposes of this Agreement, "Client" refers to ABC Technologies Pvt. Ltd. and "Vendor" refers to XYZ Software Solutions. "Services" means software development, testing, deployment, and maintenance activities performed by Vendor. "Confidential Information" means any proprietary, technical, financial, or business information disclosed by either party.

2 SERVICES

Vendor shall provide software development services to Client according to the specifications agreed upon in writing. Vendor shall deliver all project milestones by the agreed deadlines and shall use commercially reasonable efforts to ensure software quality.

3 PAYMENT TERMS

Client shall pay Vendor a total project fee of INR 10,00,000. Vendor shall submit invoices monthly. All invoices shall be payable within thirty (30) days of receipt. Any undisputed overdue amount shall accrue interest at the rate of 1% per month.

4 CONFIDENTIALITY

Both parties agree to maintain the confidentiality of all Confidential Information received during the term of this Agreement. Neither party shall disclose Confidential Information to any third party without prior written consent except where required by law. These obligations shall survive termination of this Agreement for a period of five (5) years.

5 INTELLECTUAL PROPERTY OWNERSHIP

All software, source code, documentation, deliverables, inventions, and work products created specifically for Client under this Agreement shall be the sole and exclusive property of Client. Vendor retains ownership of any pre-existing intellectual property, frameworks, libraries, and tools developed independently of this Agreement.

6 INDEMNITY

Vendor agrees to indemnify, defend, and hold harmless Client from and against any third-party claims, liabilities, damages, costs, and expenses arising from Vendor's negligence, misconduct, or infringement of intellectual property rights. Client agrees to indemnify Vendor against claims arising from materials supplied by Client.

7 LIMITATION OF LIABILITY

Except for obligations relating to confidentiality, indemnification, fraud, or willful misconduct, neither party's total liability under this Agreement shall exceed the total fees paid by Client to Vendor during the twelve (12) months preceding the claim. Neither party shall be liable for indirect, incidental, special, or consequential damages.

8 TERMINATION

Either party may terminate this Agreement upon thirty (30) days written notice to the other party. Client may immediately terminate this Agreement in the event of a material breach by Vendor. Upon termination, Vendor shall return all Confidential Information and cease use of Client property.

9 GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of India. Any disputes arising under or relating to this Agreement shall be subject to the exclusive jurisdiction of the courts located in Bengaluru, Karnataka.

10 DATA PROTECTION

Vendor shall implement reasonable administrative, technical, and organizational measures to protect Client data from unauthorized access, disclosure, alteration, or destruction. Vendor shall promptly notify Client of any security incident affecting Client data.

11 FORCE MAJEURE

Neither party shall be liable for delays or failures in performance resulting from events beyond its reasonable control, including acts of God, natural disasters, war, terrorism, labor disputes, or governmental actions.

12 ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements, understandings, and representations relating to the subject matter herein.